

GZ: 2023-0.058.359 dated August 10, 2023 (Case Number: DSB-D124.1612/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

PARTIAL DECISION

RULING

The

Data Protection Authority

decides

on

the

data protection complaint

of

A***

KG

(complainant) dated December 20, 2022, amended by submission of January 23, 2023, against

1. N*** Süd GmbH

(first respondent),

2. N*** International GmbH

(second respondent),

3. N*** Tiefkühl GmbH

(third respondent),

5. the

representative body of N*** Süd GmbH (fifth respondent),

6. the representative body of N*** International GmbH

(sixth respondent)

as well as

7. the representative body

of

N*** Tiefkühl GmbH (seventh respondent) due to alleged violation of the right to confidentiality as follows:

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The complaint is d i s m i s s e d.

Legal bases: § 1 para. 1 and 24 para. 1 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 1, Art. 4 No. 1 and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation – GDPR), Official Journal No. L 119 p. 1; §§ 105, 161 of the Commercial Code (UGB), dRGBI. p. 219/1897 as amended.

REASONING

A. Submissions of the parties and procedural history

In a submission dated December 20, 2022, amended by a submission of January 23, 2023, the complainant alleged that the first, second, and third respondents as well as the fifth, sixth, and seventh respondents violated its right to confidentiality by disclosing the complainant's data to B*** Markt GmbH located at O***gasse *7, **** Vienna.

B. Subject of the complaint

In the present case, it must be examined whether the respondents – with the first, second, and third respondents being limited liability companies based in Germany and the fifth, sixth, and seventh respondents being the respective representative bodies of the first, second, and third respondents – have violated the complainant's right to confidentiality by processing and transmitting the complainant's data to B*** Markt GmbH based in Austria. However, the initial question is whether the complainant has the right to lodge a complaint with a supervisory authority in accordance with Art. 77 para. 1 GDPR or § 24 DSG.

C. Findings of fact:

1. The complainant is a KG (limited partnership). It filed a complaint on December 20, 2022, amended by a submission of January 23, 2023, regarding a violation of the right to confidentiality, which explicitly refers to the complainant as a KG.

Assessment of evidence:

The findings are based on the submissions of the complainant dated December 20, 2022, and January 23, 2023. That the complainant is a limited partnership is also evident from the company register extract retrieved by the Data Protection Authority on August 9, 2023, for FN *6**11h, A*** KG with the business address O***gasse *8/*5, **** Vienna.

That the complainant, as a limited partnership, claims a violation of the right to confidentiality is evident from the amended complaint dated January 23, 2023, in which the complainant states regarding the designation of the right considered violated: "The constitutionally guaranteed right to confidentiality of personal data of A*** KG according to § 1 para 1 DSG."

2. The first respondent is N*** Süd GmbH with its registered office at T***straße *5/**0, *6*4* V***stadt, Germany.

The second respondent is N*** International GmbH with its registered office at Z***platz 1*/4/*5, *2**9 U***hausen, Germany.

The third respondent is N*** Tiefkühl GmbH with its registered office at I***allee *3a, *8*07 O***dorf, Germany.

Assessment of evidence: The findings are based on the submissions of the complainant dated January 23, 2023.

3. The subject of the complaint is the processing and transmission of the complainant's data by the first, second, and third respondents and their representative bodies - the fifth, sixth, and seventh respondents - to B*** Markt GmbH located at O***gasse *7, **** Vienna, Austria. Specifically, it concerns the data regarding the products ordered by the complainant from the first, second, and third respondents, data on the quantities of these ordered products, data on the estimated sales volume of these products, as well as data on the complainant's place of business.

Assessment of evidence: The finding is based on the submissions of the complainant dated January 23, 2023.

D. Legally, it follows that:

D. 1 Applicable legal provisions

§ 1 para. 1 DSG reads as follows, including the heading (emphasis by the Data Protection Authority):

****Article 1****

(Constitutional Provision)

Fundamental Right to Data Protection

§ 1. (1) Everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, provided that there is a legitimate interest in such confidentiality. The existence of such an interest is excluded if data are not accessible to a confidentiality claim due to their general availability or because they cannot be traced back to the affected individual.

****§ 24 para. 1 DSG**** reads with heading (emphasis by the Data Protection Authority):

****Complaint to the Data Protection Authority****

§ 24. (1) Every affected person has the right to lodge a complaint with the Data Protection Authority if they believe that the processing of their personal data violates the GDPR or § 1 or Article 2 of the 1st Main Part.

****Art. 1 GDPR**** reads with heading (emphasis by the Data Protection Authority):

****Article 1****

Subject Matter and Objectives

(1) This Regulation contains provisions for the protection of natural persons in relation to the processing of personal data and for the free movement of such data.

(2) This Regulation protects the fundamental rights and freedoms of natural persons and, in particular,

their right to the protection of personal data.

(3) The free movement of personal data within the Union may not be restricted or prohibited for reasons of protecting natural persons in relation to the processing of personal data.

****Art. 4 No. 1 GDPR**** reads with heading (emphasis by the Data Protection Authority):

****Article 4****

Definitions

For the purposes of this Regulation, the term:

1. "personal data" means any information relating to an identified or identifiable natural person (hereinafter referred to as "data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

****Art. 77 para. 1 GDPR**** reads with heading (emphasis by the Data Protection Authority):

****Article 77****

Right to Lodge a Complaint with a Supervisory Authority

(1) Without prejudice to any other administrative or judicial remedy, every data subject shall have the right to lodge a complaint with a supervisory authority, in particular in the Member State of their residence, their place of work, or the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this Regulation.

****§ 105 UGB**** reads with heading (emphasis by the Data Protection Authority):

****Second Book****

General Partnership, Limited Partnership, and Silent Partnership

****First Section****

General Partnership

****First Title****

Establishment of the Company

Definition

§ 105. A general partnership is a company conducted under its own name, in which the partners are jointly liable and none of the partners has limited liability towards the creditors of the company. The general partnership is legally capable. It can have any permitted purpose, including freelance and agricultural or forestry activities. It must have at least two partners.

****§ 161 UGB**** reads with heading (emphasis by the Data Protection Authority):

****Second Section****

Limited Partnership.

Definition, Application of the Provisions on the General Partnership

§ 161. (1) A limited partnership is a company conducted under its own name, in which the liability towards the creditors of the company for some partners is limited to a certain amount (liability sum) (limited partners), while for the other partners it is unlimited (general partners).

(2) Unless otherwise provided in this section, the provisions applicable to the general partnership shall apply to the limited partnership.

****D. 2 In the Matter****

According to § 1 para. 1 DSG as amended, everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, provided that there is a legitimate interest in such confidentiality.

In the present case, the complainant is a limited partnership.

§ 105 UGB establishes that a general partnership is legally capable. According to § 161 para. 2 UGB, the provisions applicable to the general partnership apply to the limited partnership, unless this section (i.e., the Second Section "Limited Partnership" of the Second Book "General Partnership, Limited Partnership, and Silent Partnership" of the UGB) provides otherwise. Since the Second Section "Limited Partnership" of the Second Book "General Partnership, Limited Partnership, and Silent Partnership" of the UGB does not provide otherwise regarding the legal capacity of limited

partnerships, the second sentence of § 105 UGB applies.

This means: The limited partnership is also legally capable. As a result, it is also capable of being a party, insolvent, and liable for torts (see Koppensteiner/Auer in Straube/Ratka/Rauter, UGB I4 § 161 Rz 3 (as of 1.10.2020, rdb.at)).

Whether a limited partnership is also a legal entity is disputed (negatively, for example, Duursma/Duursma-Kepplinger/Roth, Gesellschaftsrecht Rz 1122; Schauer in Kalss/Nowotny/Schauer, Gesellschaftsrecht2 Rz 2/285; affirmatively already regarding the HGB Dellinger, Rechtsfähige Personengesellschaften 28 ff, each with references; see also overview of opinions by Krejci in Krejci, RK UGB § 105 Rz 14; see also Koppensteiner/Auer in Straube/Ratka/Rauter, UGB I4 § 161 Rz 4 (as of 1.10.2020, rdb.at) on the whole.

Now, "everyone" in § 1 Abs. 1 DSG also includes legal entities.

However, § 3 Abs. 1 DSG also stipulates that the provisions of the Data Protection Act apply to the use of personal data within the country.

Since the case at hand involves data processing and transmission by limited liability companies (first, second, and third respondents) along with the representative bodies attributable to these companies (fifth, sixth, and seventh respondents) – in Germany and thus not within the country, § 1 Abs. 1 DSG as well as § 24 Abs. 1 DSG do not apply. In this respect, it can also remain open whether the complainant – a limited partnership – qualifies as a legal entity.

Furthermore, the application of the GDPR must also be examined: Art. 1 Abs. 1 GDPR stipulates that the GDPR contains provisions for the protection of natural persons in the processing of personal data. Art. 1 Abs. 2 GDPR states that the GDPR protects the fundamental rights and freedoms of natural persons and in particular their right to the protection of personal data.

That only personal data of natural persons are protected by the GDPR is also evident from the definition of "data subject" in Art. 4 Z 1 GDPR, which refers to "an identified or identifiable natural person."

However, the present complaint does not concern the processing and transmission of data of a natural person, but rather the data of a limited partnership – the complainant – regarding the products it ordered along with their quantities.

The right to lodge a complaint with a supervisory authority according to Art. 77 Abs. 1 GDPR is, however, only available to data subjects, i.e., natural persons. A non-natural person such as the complainant does not have this right of complaint according to Art. 77 Abs. 1 GDPR.

D. 3 Result

Since the complainant filed a complaint regarding a violation of the right to confidentiality and the data in question explicitly refer to the complainant as a limited partnership, a decision was to be made accordingly based on the aforementioned.

In conclusion, it is noted that the complainant has the option to file a complaint at the location of the alleged violation of the GDPR (here: Germany) according to Art. 77 GDPR. Furthermore, it is pointed out that the present complaint against the fourth respondent designated in the complaint (B*** Markt GmbH with the address O***gasse *7, **** Vienna) and the eighth respondent (representative body of B*** Markt GmbH) will be continued.